

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Appeal No.319 of 2024

In the matter of:

An appeal under Section 41 of the Shishu Ain,
2013.

-And-

In the matter of:

Md. Rafiqul Islam

.... Appellant

-Versus-

The State

.... Respondent

Mr. Bijoy Krisna Das, Advocate

.... For the appellant.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 7th February 2024

This is an application under Section 41 of the Shishu
Ain, 2013.

In this case under Sections under Sections 302/394/34 of the Penal Code the appellant has made a confession under Section 164 of the Code of Criminal Procedure.

In view of above materials on record we are not inclined to grant bail to the appellant at this point of time but we feel it necessary to pass a direction upon the Trial Court below for conclusion of the trial of the case expeditiously.

Accordingly, we are directing the learned Judge of Shishu Adalat No.03, Cumilla to conclude the trial of the case within 6(six) months from the date of receipt of this order without allowing any adjournment beyond 15(fifteen) days.

But if he fails to conclude the trial within above period he will have to explain in writing to this Court through the Registrar General, Supreme Court of Bangladesh as to why the trial could not be concluded and he shall also consider the petition for bail if any filed by the appellant with sympathy and in accordance with law.

The Superintendent of Police, Cumilla is directed to ensure that prosecution witnesses are produced before the

Trial Court on the date to be fixed by the Court without any fail.

Let copies of this order be sent to the learned Judge of Shishu Adalat No.03, Cumilla and Superintendent of Police, Cumilla at once.

With above direction this appeal is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER